

Radhey Shyam Yadav v. State of U.P.

Allahabad High Court · Division Bench · 23 July 2021 · Writ - C No. 10304 of 2021 · Writ - C No. 10304 of 2021 · **Writ disposed of; petitioner relegated to apply under Clause 4.44.**

HEADNOTE

A Division Bench of the Allahabad High Court disposed of a writ seeking mutation of a deceased consumer's 7.5 HP pumping-set connection and grant of a 3 HP supply. Accepting the licensee's stand that Clause 4.44 of the U.P. Electricity Supply Code, 2005 requires an application in the prescribed form with processing fee, and that an application sent by registered post does not meet that requirement, the Court relegated the petitioner to move a proper Clause 4.44 application and directed the competent authority to decide any such application expeditiously in accordance with law, preferably within one month.

FACTUAL SUMMARY

The petitioner's father held a 7.5 HP pumping-set connection and died in 2005. After the death the petitioner applied to transfer the connection into his name and continued depositing electricity bills for the pumping set. In July 2020 the old pump failed; a damage certificate issued on 31 December 2020. He then demanded a 3 HP connection for a pump already installed and running. The connection had still not been transferred into his name.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.44

transfer of connection — prescribed application

HOLDING

Transfer of an electricity connection after the recorded consumer's death must be sought by an application in the prescribed form under Clause 4.44 of the U.P. Electricity Supply Code, 2005, with the processing fee. An application sent by registered post does not satisfy that requirement. The writ petitioner was relegated to move a proper Clause 4.44 application; if moved, the competent authority must decide it expeditiously in accordance with law, preferably within one month. ¶ 1

PRINCIPLE TAGS

clause-4.44-transfer-requires-prescribed-form-application The Court accepted that mutation of a deceased consumer's pumping-set connection must be sought by a prescribed-form application with processing fee under Clause 4.44; a registered-post application does not suffice, and the writ was disposed by relegating the petitioner to that route. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PUMPING-SET CONNECTION SHOULD BE TRANSFERRED INTO THE PETITIONER'S NAME OR A 3 HP SUPPLY GRANTED

Merits of mutation and of the reduced-load demand left to the competent authority on a proper Clause 4.44 application. ¶ 1